

26STCV07750 26STCV07750

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 26STCV07750 Hearing Date: June 26, 2026 Dept: 311

26STCV07750SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV07750

HEE

IN JUNG, et al. vs ALL DESERT TOWING RECOVERY LLC, et al.

June

26, 2026

8:30

AM

NATURE OF PROCEEDINGS:

BENCHMARK INSURANCE COMPANY'S MOTION FOR LEAVE TO INTERVENE.

RULING:

The Court grants the unopposed
Motion.

Benchmark Insurance

Company is granted leave to intervene, and shall file the proposed Answer, as a
separate document, on or before July 6, 2026.

I.

BACKGROUND

On March 10, 2026, HEE IN
JUNG and FRANCESCA JUYUN JUNG (Plaintiffs) filed a Complaint against ALL DESERT
TOWING RECOVERY, LLC, and RONALD MCNUTT (Defendants), for Motor-Vehicle
Personal Injury.

Plaintiffs allege that
they were injured in an automobile accident caused by the driver for the entity
Defendant.

On May 19, 2026, BENCHMARK
INSURANCE COMPANY filed the Motion For LEAVE TO INTERVENE, on grounds including
that Defendant ALL DESERT TOWING RECOVERY, LLC is suspended by the Franchise
Tax Board of California, cannot defend itself, and has failed to cooperate in
the defense of this case.

There is no Opposition
filed to this matter.

II.

LEGAL STANDARD

A treatise summarizes
applicable law, as follows:

[7:645.6]

Suspended corporation: A corporation whose powers have been suspended for
nonpayment of taxes lacks capacity to defend itself in California courts (see
Rev. & Tax.C. § 23301). Nor may an insurer owing a duty to defend such a
corporation answer and defend the action on the insured's behalf. The insurer
may, however, seek leave to intervene in the action to protect its own

interests by defending the claim against the suspended corporation. [See Rev. & Tax.C. § 19719(b); Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc. (2006) 136 CA4th 212, 221-222, 39 CR3d 33, 38-39—failure to intervene barred insurer from seeking fees and costs upon dismissal of underlying action; see also El Escorial Owners' Ass'n v. DLC Plastering, Inc. (2007) 154 CA4th 1337, 1349-1350, 65 CR3d 524, 534-535]

(California Practice
Guide: Insurance Litigation, § 7:645.6.)

III.

ANALYSIS

The Insurer maintains that pursuant to Code of Civil Procedure section 387, subdivision(c), it qualifies for order granting leave to intervene as insurer for Defendant LLC, and has a direct, substantial, and immediate interest in the outcome, as being potentially liable for any judgment entered against Defendant LLC.

The Court concurs.

IV.

CONCLUSION

The Court grants the Motion.